

Hira Lal v. State of U.P.

Allahabad High Court · Division Bench · 25 November 2019 · Writ-C No. 37937 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5; limited stay on recovery.**

HEADNOTE

A writ seeking to quash a recovery certificate and restrain coercive recovery is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may apply to the Executive Engineer within the time fixed; that authority is to decide by a speaking order after hearing. Limited protection against coercive action lasts for a short period or until that application is decided, and lapses if the Clause 6.5 application is not filed in time. Merits of the recovery are not examined.

FACTUAL SUMMARY

Hira Lal invoked the writ jurisdiction of the Allahabad High Court to quash a recovery certificate dated 31 July 2019, to restrain coercive measures in its pursuance, and to have a grievance said to be pending before the Executive Engineer decided. Counsel for the State and the Electricity Department were heard. The Court treated the dispute as one for which Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplied a statutory forum, and disposed of the petition on that footing without examining the correctness of the recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

A writ against a recovery certificate will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may approach the Executive Engineer or appropriate authority under Clause 6.5 within 15 days; that authority is to consider and decide the application in accordance with law by a speaking order after hearing, preferably within 15 days. Coercive action on the recovery certificate is stayed for 45 days or until disposal of the application, whichever is earlier; the stay lapses automatically if the Clause 6.5 application is not filed in time. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking to quash a recovery certificate and restrain coercive recovery is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may apply to the Executive Engineer within the time fixed; that authority is to decide by a speaking order after hearing.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE AND THE PETITIONER'S BILLING GRIEVANCE

The Court expressly declined to enter into the merits; Respondent No. 2 is to decide the claim on its own merits. ¶ 1